

HOUSE BILL 2168

By Barrett

AN ACT to amend Tennessee Code Annotated, Title 10,
Chapter 7, relative to public records.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 10-7-504, is amended by deleting subsection (h) and substituting:

(h)

(1) Notwithstanding another law to the contrary, the names of persons directly involved in carrying out a sentence of death are confidential and are exempt from public disclosure.

(2) The identity of a supplier that compounds, distributes, or manufactures the drugs obtained and used by the department of correction to carry out an execution by lethal injection is not confidential, is open to public inspection, and may be subject to discovery or introduction as evidence in a civil proceeding. The qualifications, evidence of competency, and relevant experience of an officer or employee of the supplier, and a person or contractor used by the supplier to obtain equipment or substances to facilitate the compounding, distribution, or manufacturing of the drugs used by the department of correction in carrying out a sentence of death are not confidential and are open to public inspection. However, the residential and office addresses, residential and office telephone numbers, social security numbers, and tax identification numbers of officers and employees of the supplier and any person or contractor used by the supplier to obtain equipment or substances to facilitate

the compounding of such drugs are confidential and are exempt from public disclosure.

(3) Records related to remuneration to a person or a supplier in connection with the person's or supplier's participation in or preparation for the execution of a sentence of death are not confidential and are open to public inspection. Payments must be made in accordance with a memorandum of understanding between the commissioner of correction and the commissioner of finance and administration. If a contractor is employed to participate in or prepare for the execution of a sentence of death, then the amount of the special payment made to the contractor pursuant to the contract must be reported by the commissioner of correction to the comptroller of the treasury and the amount is not confidential.

(4) Information made confidential by this subsection (h) must be redacted wherever possible, and nothing in this subsection (h) limits or denies access to otherwise public information because a file, a document, or data file contains confidential information.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.